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April 9, 2026

ENGROSSED HOUSE
BILL NO. 2588

By: Staires of the House

and

Rader of the Senate

An Act relating to owners associations; amending 60 O.S. 2021, Section 854, which relates to owners association membership; requiring owners association board members to be recorded owners of property and physically reside in the real estate development that the owners association governs; defining term; providing for automatic resignations of board members under certain circumstances; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 60 O.S. 2021, Section 854, is amended to read as follows:

Section 854. A. Membership of said owners association shall consist of recorded owners of separately owned lots in the real estate development. Membership is transferred upon legal transfer of title to the separately owned lots. The owners association may also enforce the covenant and restrictions of the real estate development when specified by the covenants and restrictions.

1 B. Board members of an owners association, after the real
2 estate developer relinquishes control of the owners association,
3 shall consist of members of said owners association who are current
4 recorded owners of lots in the real estate development.
5 Furthermore, owners association board members shall physically
6 reside in the real estate development that is governed by said
7 owners association. For purposes of this act, a board member of
8 said owners association is deemed to "physically reside" in the real
9 estate development if the member maintains an address for personal
10 income tax purposes at a home or dwelling within the owners
11 association, and the member inhabits and maintains the home or
12 dwelling located at that address within the owners association as
13 the fixed, permanent, and principal home of the member for at least
14 ten (10) months, in the aggregate, during each calendar year in
15 which the member serves on the board. If at any time after the
16 member is elected to serve as a board member the member fails to
17 meet or no longer meets the requirements of physically residing in
18 the real estate development, that board member shall be deemed to
19 have automatically resigned his or her position as a board member.

20 SECTION 2. This act shall become effective November 1, 2026.

21 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
22 April 9, 2026 - DO PASS
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